

22STCV16660 22STCV16660

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Case Number: 22STCV16660 Hearing Date: August 11, 2026 Dept: D

MARIELA ORELLANA

PLEITEZ V. DAVID ALFRED SAVEDRA, ET AL.

CASE NO.: 22STCV16660

HEARING: 08/11/2026 @

9:30 a.m.

#16

TENTATIVE ORDER

Plaintiff Mariela Orellana

Pleitez's motion to set aside dismissal is DENIED.

Moving party to give notice.

Plaintiff Mariela Orellana

Pleitez (Plaintiff) moves for an order to set aside the dismissal entered on December 24, 2025 under the provisions of Code of Civil Procedure section 473.

Background

On May 19, 2022, Plaintiff filed a Complaint against Defendants David Alfred Savedra, DS Waters of America, Inc., and Does 1 through 100 (collectively Defendants) for motor vehicle and general negligence. Plaintiff alleges injuries arising from a car accident. On

September 11, 2025, Plaintiff filed an amendment, replacing DS Services of America Inc. with Doe 1.

Plaintiff has filed six separate Requests for Entry of Default and Default Judgment against Defendants through December 2024, each rejected by the Court for various technical reasons. On December 27, 2024, Plaintiff filed a Notice of Change of Handling Attorney, designating Arega Eissagholian as Plaintiff's counsel of record.

This Court granted relief from dismissal for failure to appear at a hearing, giving Plaintiff a final opportunity to file proper default judgment documents, and set Show Cause Hearings regarding proofs of service and default judgment for December 24, 2025. (Minute Order 11/21/2025).

New handling attorney, Arega Eissagholian appeared at the hearing and was ordered to give notice of the December 24, 2025 hearings. (Minute Order 11/21/25.) A review of the docket establishes that Plaintiff failed to comply with the court's order to give notice. Despite appearing for the hearing on November 21, 2025, and being ordered to give notice of the December 24, 2025 show cause hearings, Plaintiff's counsel Arega Eissagholian failed to file compliant default judgment documents by the hearing date, and failed appear. As a result, this Court dismissed Plaintiff's Complaint without prejudice.

On January 27, 2026, Plaintiff filed a motion to set aside or vacate the December 24, 2025, dismissal on the grounds of surprise and excusable neglect.

On February 25, 2026, this Court denied Plaintiff's motion for failure to comply with the requirement to submit a proposed rules-compliant default judgment packet. (Minute Order 2/25/2026). The Court also noted that it was the second time Plaintiff has had to file a motion seeking relief from dismissal.

On June 10, 2026, Plaintiff filed a renewed motion to set aside or vacate the dismissal.

No opposition or reply has been

filed.

Legal Standard

The court has broad discretion to vacate the entry of default, default judgment, or a dismissal where the moving party timely establishes a proper ground for relief. (*Cruz v. Fagor America, Inc.* (2007) 146 Cal.App.4th 488, 495.) Code of Civil Procedure section 473, subdivision (b) contains two distinct provisions for relief from default. The first provision is discretionary and broad in scope, providing: "The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., §473, subd. (b).) Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (*Ibid.*)

The general underlying purpose of Code of Civil Procedure section 473, subdivision (b) is to promote the determination of actions on their merits. (*Even Zohar Const. & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830, 838-839.)

Analysis

Plaintiff moves for an order setting aside the dismissal entered on December 24, 2025. This motion is made on the grounds of inadvertence, surprise, mistake, or excusable neglect pursuant to Code of Civil Procedure section 473, subdivision (b).

A motion for relief under Code of Civil Procedure section 473, subdivision (b) must be made within six months after the dismissal is entered. As set forth above, the dismissal was entered on December 24, 2025. Plaintiff filed the instant motion on June 10, 2026. Accordingly, the motion is timely.

However, although Plaintiff

characterizes the instant motion as one for relief under section 473, subdivision (b), it effectively seeks reconsideration of the Court's February 25, 2026 order denying Plaintiff's prior motion to set aside the same dismissal.

Code of Civil Procedure Section

1008, subdivision (a) provides in pertinent part, "[w]hen an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown." (Code Civ. Proc., § 1008, subd. (a).)

As it relates to new or different

facts, circumstances, or law under Code of Civil Procedure section 1008, subdivision (a), "the moving party must provide a satisfactory explanation for the failure to produce that evidence at an earlier time." (Shiffer v. CBS Corp. (2015) 240 Cal.App.4th 246, 255 (Shiffer).) Furthermore, "facts of which the party seeking reconsideration was aware at the time of the original ruling are not "new or different." (In re Marriage of Herr (2009) 174 Cal.App.4th 1463, 1468.)

In support of the instant motion,

Plaintiff's counsel declares that he assumed responsibility for the matter on April 23, 2026, after Plaintiff's attorney of record, Arega Eissagholian, left the MGDESYAN LAW FIRM. (Gezalian Decl., ¶ 2.) Counsel further states that, at the beginning of May 2026, he attempted to contact the clerk in Department 27 of the Spring Street Courthouse but was unable to do so because the department had been closed. (Id. at ¶ 3.) On May 15, 2026, the matter was reassigned to Department D in the Norwalk Courthouse. (Ibid.; Motion, pp. 3-4.) Counsel also states that, consistent with the Court's February 25, 2026 minute order, Plaintiff has now attached the rules-compliant default judgment packet that was missing from the prior motion. (Motion, p. 5; Gezalian Decl., ¶ 6, Ex. C.)

The Court finds that Plaintiff

has not demonstrated new or different facts warranting reconsideration. Although Plaintiff has now submitted the previously omitted default judgment packet, Plaintiff does not adequately explain why that packet was omitted from the original motion, despite the Court expressly identifying the omission as the basis for denying the prior motion. While counsel explains that the matter was reassigned after prior counsel left the firm, those circumstances arose after the Court's February 25, 2026 ruling and therefore do not constitute a satisfactory explanation for the earlier omission. (See *Shiffer*, *supra*, 240 Cal.App.4th at 255.)

Moreover, although the matter was reassigned on May 15, 2026, Plaintiff did not file the instant motion until June 10, 2026. Counsel provides no explanation for the nearly four-week delay following reassignment. Accordingly, Plaintiff has failed to demonstrate new or different facts, circumstances, or law sufficient to warrant reconsideration under Code of Civil Procedure section 1008.

Conclusion

Based on the foregoing, Plaintiff Mariela Orellana Pleitez's motion to set aside dismissal is DENIED.